

Court No. - 38

Case :- WRIT - C No. - 26107 of 2014

Petitioner :- Managing Director D.V.V. Nigam Ltd. And 2 Others

Respondent :- Sri Kartar Singh And Another

Counsel for Petitioner :- Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Suneet Kumar,J.

Issue notice to the respondent no. 1 by registered post. Steps may be taken within a week.

In addition thereto, petitioner may serve respondent no. 1 personally and file an affidavit of service by the next date of listing.

Respondents may file the counter affidavit in eight weeks.

List in the week commencing 7 July 2014.

Order Date :- 9.5.2014

S.Prakash

(Dilip Gupta,J.)

(Suneet Kumar,J.)

Court No. - 34

Case :- WRIT - C No. - 26107 of 2014

Petitioner :- Managing Director D.V.V. Nigam Ltd. And 2 Others

Respondent :- Sri Kartar Singh And Another

Counsel for Petitioner :- Baleshwar Chaturvedi

Counsel for Respondent :- S.C.

Hon'ble Dilip Gupta,J.

Hon'ble Mahesh Chandra Tripathi,J.

Affidavit of service indicates that respondent no.1 has been served. No counter affidavit has been filed and nor any counsel has put in appearance. Respondent no.1 may file the counter affidavit within four weeks.

List this petition on 24 September 2014. Till the next date of listing, the operation of the order dated 1 January 2014 passed by the Consumer Grievance Redressal Forum, Agra shall remain stayed.

Order Date :- 20.8.2014

GS

(Dilip Gupta, J.)

(Mahesh Chandra Tripathi, J.)

Court No. - 10

Case :- WRIT - C No. - 26107 of 2014

Petitioner :- Managing Director D.V.V. Nigam Ltd. And 2 Others

Respondent :- Sri Kartar Singh And Another

Counsel for Petitioner :- Baleshwar Chaturvedi

Counsel for Respondent :- S.C.

Hon'ble Arun Tandon,J.

Hon'ble Arvind Kumar Mishra-I,J.

Despite time being granted no counter affidavit has been filed.

It is the case of the petitioner that the proceedings initiated before the District Consumer Forum by the respondents are legally not maintainable in view of the judgment of the Apex Court in the case of **U.P. Power Corporation Ltd. vs. Anis Ahmad**, reported in *LAWS(SC)-2013-7-145*.

Admit.

Interim order granted earlier by this Court shall continue in operation until further orders of this Court.

It is made clear that it shall be open to the petitioner-Corporation to proceed against the consumer in accordance with law irrespective of the orders passed by the District Consumer Forum.

(Arvind Kumar Mishra-I, J.)

(Arun Tandon, J.)

Order Date :- 10.10.2014

Sushil/-



2025:AHC:194228-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 26107 of 2014

Managing Director D.V.V. Nigam Ltd. And 2 Others

.....Petitioner(s)

Versus

Sri Kartar Singh And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Baleshwar Chaturvedi
Counsel for Respondent(s)	:	S.C.

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. Heard Sri Baleshwar Chaturvedi, learned counsel for the petitioners.

2. The controversy involved in the present writ petition is that respondent no. 1 had obtained an electricity connection over his property on 02.07.1990. However, it is alleged that no electricity bill was ever issued to him, despite him having approached the office of the Executive Engineer (petitioner no. 2) on several occasions. In the year 2010, the supply and distribution of electricity in the city of Agra was handed over to Torrent Power Limited, i.e. petitioner no. 3 and consequently the electricity service connection number of respondent no. 1 was also changed. Ultimately, in April 2013, an electricity bill for the month of April 2013 was issued to respondent no. 1 for an amount of Rs. 1309.81, showing arrears of Rs. 1,75,121.79. It is further alleged that respondent no. 1 again approached the office of petitioner no. 2 regarding the arrears, but to no avail, whereupon the respondent no.1 was constrained to file a complaint before the Consumer Grievance Redressal Forum, Agra.

3. The petitioner nos. 1 and 2 appeared before the learned Forum and filed their written statement, wherein it was stated that bills had been issued to respondent no. 1 from time to time. At the time of transfer of the service connection to Torrent Power Limited, an amount of Rs. 1,26,175/- was shown as past arrears against respondent no. 1 as on 01.04.2010. It was further stated that the complaint itself was not maintainable under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005.

4. A written statement was also filed on behalf of Torrent Power Limited (petitioner no. 3), stating that it had taken over the service on 01.04.2010 and had been regularly sending bills to respondent no. 1. It was further stated that as on 17.08.2013, a total amount of Rs. 1,81,809/- was shown as arrears payable to Dakchinanchal Vidyut Vitran Nigam Ltd. and an amount of Rs.

19,649/- was shown as arrears payable to petitioner no. 3 by respondent no. 1.

5. The learned forum vide order dated 01.01.2014 passed in the aforesaid case held that it was not believable that respondent no. 1 had gone to the office of petitioner no. 2 and that despite assurances, the electricity bills were not supplied to him. If respondent no. 1 had not been provided the electricity bills, it was always open to him to file an application in that regard before the concerned office. At the same time, it was also held that petitioner no. 2 had produced records relating to the aforesaid electricity connection only for the years 2009–10 and no bills or ledgers pertaining to the period prior thereto had been produced. Further, there was no evidence on record to show that any effort was made by the office of petitioner no. 2 to disconnect the electricity connection or take any action whatsoever against respondent no. 1 despite non-payment of bills since 1990. It was also undisputed that respondent no. 1 had been duly supplied electricity bills between August 2010 and August 2013 after the service was transferred to petitioner no. 3. The learned forum thus, concluded that petitioner no. 2 had produced records only for the period 25.02.2009 to 19.03.2009 and 20.12.2009 to 20.03.2010, wherein the previous arrears payable by respondent no. 1 were indicated.

6. Under these circumstances, the learned forum, while placing reliance on Section 56(2) of the Electricity Act, 2003, held that the petitioners were not entitled to recover any sum after the expiry of two years from the date on which such sum first became due, and no amount beyond that period could be recovered from respondent no. 1. Thus, it was held that since, the petitioners had produced records only from 25.02.2009, they would be entitled to recover arrears only from 26.02.2007 from respondent no. 1 under the provisions of Section 56(2) of the Electricity Act, 2003. Accordingly, the demand of Rs. 1,76,431.60/- towards arrears against respondent no. 1 was set aside, and the petitioners were directed to prepare a fresh bill in respect of arrears for the period from 26.02.2007 to 31.03.2010 excluding surcharge.

7. Aggrieved by the order dated 01.01.2014, the petitioners have filed the present writ petition. A perusal of the writ petition reveals that the petitioners have failed to give any justification for not producing the bills or ledgers pertaining to the electricity connection of respondent no. 1 for the period prior to the year 2009. Even the electricity bills annexed by the petitioners with the present writ petition pertain to the period 13.08.2010 to 16.08.2013. The only contention raised in the present writ petition is that respondent no. 1 failed to avail remedy under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 and therefore the complaint filed by respondent no. 1 before the learned forum was not maintainable and was premature. The petitioners themselves, both in the present writ petition and before the learned forum have utterly failed to provide any plausible

explanation as to what prevented them from producing the electricity bills or ledgers for the period prior to February 2009.

8. Hence, the petitioners cannot be given the benefit of their own defaults. In these circumstances, the order dated 01.01.2014 passed by the learned forum, while placing reliance on Section 56(2) of the Electricity Act, 2003, cannot be faulted with and appears to be the correct view in light of the evidence available on record. In this regard Section 56(2) of the Electricity Act, 2003 reads as under:-

"(2) Notwithstanding anything contained in any other law for the time being in force, no sum due from any consumer, under this section shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrear of charges for electricity supplied and the licensee shall not cut off the supply of the electricity."

9. As regards the reliance placed on Clause 6.5(b) of the U.P. Electricity Supply Code, 2005, it was the specific case of respondent no. 1 before the learned forum that he had repeatedly approached the office of petitioner no. 2 but to no avail. Even otherwise, the dispute pertains to the year 2013 and nearly twelve years have passed thereafter. The petitioners have utterly failed to demonstrate as to how the order dated 01.01.2014 passed by the learned forum suffers from any illegality on merits.

10. In these circumstances, it would not be in the interest of justice to interfere with the order dated 01.01.2014 solely on technical grounds after the lapse of a substantial period of time. It is further clarified that the present proceedings do not arise out of any action initiated in pursuance to a complaint under Section 126 of the Electricity Act, 2003 relating to assessment or under Section 135 to 140 and Section 150 of the Electricity Act, 2003, such complaints not being maintainable before Consumer Forums.

11. Accordingly, the writ petition lacks merit and is hereby **dismissed**.

November 4, 2025

Gaurav

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)